

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DAVONTAY WORRELL,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
DESMOND MIDDLETON, Tax No. 949331, POLICE
OFFICER TIMOTHY BURKE, SERGEANT MICHAEL
FALLONA, Tax No. 895425, POLICE OFFICER
CONNOR, POLICE OFFICER GUO, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates NEW YORK
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 16, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DESMOND MIDDLETON, Tax No. 949331, 19th Precinct, 153 East
67th Street, New York, New York 10065
POLICE OFFICER TIMOTHY BURKE, 19th Precinct, 153 East 67th Street, New York,
New York 10065
SERGEANT MICHAEL FALLONA, Tax No. 895425, 19th Precinct, 153 East 67th
Street, New York, New York 10065
POLICE OFFICER CONNOR, 19th Precinct, 153 East 67th Street, New York, New York
10065
POLICE OFFICER GUO, 19th Precinct, 153 East 67th Street, New York, New York
10065

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DAVONTAY WORRELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DESMOND MIDDLETON, Tax No. 949331, POLICE
OFFICER TIMOTHY BURKE, SERGEANT MICHAEL
FALLONA, Tax No. 895425, POLICE OFFICER
CONNOR, POLICE OFFICER GUO, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DAVONTAY WORRELL, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 17, 2018, at approximately 2:00 a.m., plaintiff Davontay Worrell while in the vicinity of 1111 Third Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned at the 19th Precinct and Manhattan Central Booking for approximately 22 hours until the District Attorney declined to prosecute plaintiff and he was released from custody. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questions, frisked, searched, confined, strip searched, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DAVONTAY WORRELL is a resident of the state of New York.

3. POLICE OFFICER DESMOND MIDDLETON, Tax No. 949331, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER DESMOND MIDDLETON, Tax No. 949331, was at all times relevant herein, assigned to the 19th Precinct.

5. POLICE OFFICER DESMOND MIDDLETON, Tax No. 949331, is being sued in his individual and official capacity.

6. POLICE OFFICER TIMOTHY BURKE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER TIMOTHY BURKE, was at all times relevant herein, assigned to the 19th Precinct.

8. POLICE OFFICER TIMOTHY BURKE, is being sued in his individual and official capacity.

9. SERGEANT MICHAEL FALLONA, Tax No. 895425, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT MICHAEL FALLONA, Tax No. 895425, was at all times relevant herein, assigned to the 19th Precinct.

11. SERGEANT MICHAEL FALLONA, Tax No. 895425, is being sued in his individual and official capacity.

12. POLICE OFFICER CONNOR, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER CONNOR, was at all times relevant herein, assigned to the 19th Precinct.

14. POLICE OFFICER CONNOR, is being sued in his individual and official capacity.

15. POLICE OFFICER GUO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER GUO was at all times relevant herein, assigned to the 19th Precinct.

17. POLICE OFFICER GUO, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

23. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 11, 2018.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On January 17, 2018, at approximately 2:00 a.m., plaintiff was lawfully present in the vicinity of 1111 Third Avenue, New York, New York, when the defendant

police officers unlawfully stopped, questioned, and frisked plaintiff without probable cause, or any legal justification.

28. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to believe that plaintiff committed a crime or violated the law in any way.

29. At no time did the defendant police officers recover any weapons, drugs, contraband or other illegal paraphernalia from plaintiff or from plaintiff's possession, custody or control.

30. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

31. Plaintiff was transported by the defendant police officers to the 19th Precinct against his will, where plaintiff was photographed, fingerprinted and placed in a holding cell.

32. On January 17, 2018, at approximately 8:30 a.m., plaintiff was transported to Manhattan Central Booking and placed in a holding cell.

33. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff possessed a controlled substance.

34. On January 17, 2018, at approximately 12:00 a.m., after plaintiff was unlawfully held in custody for approximately 22 hours, the District Attorney declined to prosecute plaintiff and plaintiff was released from custody.

35. Notably, as per the District Attorney's Office decline to prosecute paperwork, the District Attorney declined to prosecute plaintiff because the defendant police officers were unable to articulate any facts indicating that plaintiff committed any crime.

36. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and imprisonment of plaintiff.

37. Plaintiff had approximately \$1,000 on his person when he was arrested that he needed to use to pay his car payment, and that money was vouchered by the defendant police officers.

38. As a result, plaintiff did not have the money to make his car payment and the car was repossessed and he had to pay approximately \$1,949.19 to get the car back

39. The unlawful stop, question, frisk, search, seizure, false arrest and imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Davontay Worrell. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

PRAYER FOR RELIEF

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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 16, 2019

/s/
STUART E. JACOBS